

case at Bar stands, is altogether uncertain, for the hurt which may come thereby may be little or great, *leve vel grave*, excessive or small, &c. and therefore the King and the makers of the Act could not, for an offence so uncertain, impose a certainty of the fine, or time of imprisonment, but leave it to the censors to punish such offences, *secundum quantitatem delicti*, which is included in these words, *per fines, amerciamenta, imprisonamenta corporum suorum, et per alias vias rationabiles et congruas*. 2. The harm which accrues by *non bene exequendo*, &c. concerns the body of man; and, therefore, it is reasonable that the offender should be punished in his body, *sc.* by imprisonment: but he who practices physic in London in a good manner, although he doth it without licence, yet it is not any prejudice to the body of man. 3. He who practises physic in London doth not offend the statute by his practice, unless he practises it by the space of a month. But the clause of *non bene exequendo*, &c. doth not prescribe any certain time, but at what time soever he ministers physic *non bene*, &c. he shall be punished by the said second branch: and the law hath great reason in making this distinction, for divers nobles, (a) gentlemen, and others, come upon divers occasions to London, and when they are here they become subject to diseases, and thereupon they send for their physicians in the country, who know their bodies, and the cause of their diseases; now it was never the meaning of the Act to bar any one of his own physician; and when he is here he may practise and minister to another by two or three weeks, &c. without any forfeiture; for any one who practises physic *bene*, &c. in London (although he has not taken [118 a] any degree in any of the universities) shall forfeit nothing, unless he practises it by the space of a month; and that was the reason that the time of a month was put in the Act. 4. The censors cannot be (b) judges, ministers, and parties; judges to give sentence or judgment; ministers to make summons; and parties to have the moiety of the forfeiture, *quia* (c) *aliquis non debet esse Judex in propria causa, imo iniquum est aliquem suæ rei esse judicem*; and one cannot be Judge and attorney for any of the parties, Dyer 3 E. 6. 65. 38 E. 3. 15. 8 H. 6. 19 b. 20 a. 21 E. 4. 47 a. &c. And it appears in our books, that in many cases, the common law will (d) controul Acts of Parliament, and sometimes adjudge them to be utterly void: for when an Act of Parliament is against common right and reason, or repugnant, or impossible to be performed, the common law will controul it, and adjudge such Act to be void; and, therefore, in 8 E. 3. 30 a. b. *Thomas Tregor's case* on the statute of W. 2. c. 38. *et Artic' Super Chartas*, c. 9. Herle (e) saith, some statutes are made against law and right, which those who made them perceiving, would not put them in execution (C): the

(a) Cart. 115.

(b) Co. Lit. 141 a. Bridg. 11. Dyer 220. pl. 14.

(c) Co. Lit. 141 a.

(d) 7 Co. 14 a. *Calvin's case*. 2 Brownl. 198. 265. Hard. 140.

(e) 8 E. 3. 30 b.

(C) Lord Ellesmere observes, (Observations on the Reports, p. 21.) "And for novelty in *Dr. Bonham's case*, the Chief Justice having no precedent for him, but many judgments against him, yet doth he strike in sunder the bars of government of the College of Physicians: and, without any pausing on the matter, frustrate the patent of King Henry VIII., whereby the college was erected, and tramples upon the Act of Parliament, 14 & 15 H. 8. whereby that patent was confirmed, blowing them both away as vain, and of no value, and this is in triumph of himself being accompanied but with the opinion of one Judge only for the matter in law where three other Judges were against him, which case possesseth a better room in the press than is deserved."

In Serjt. Hill's copy of the observations in Lincoln's Inn Library, there is the following manuscript observation on the strictures of Lord Ellesmere. "In page 117 of the Report of *Dr. Bonham's case*, in 8 Co. it appears that two of the other Judges agreed with Coke as to the two points of which they gave judgment. The second point is in 117 b. and the matter of law in support of it, which is condemned here, is in page 118, viz. that a statute against reason is void, and is supported by many authorities then, and by others before, and since in our Courts; and the antiquity of it is still more ancient. Just. Inst. Lib. Tit. 2. Text 1. *Dr. Bonham's case* is reported